BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, CASOMB-certified treatment provider, as state actor; JEFF MACOMBER, Secretary of the California Department of Corrections and Rehabilitation, in his official capacity,

Defendants.

Case No. 2:26-cv-00195-TLN-AC

NOTICE OF VOLUNTARY DISMISSAL WITHOUT PREJUDICE

[Fed. R. Civ. P. 41(a)(1)(A)(i)]

Judge: Hon. Troy L. Nunley
Mag. Judge: Hon. Allison Claire

Complaint Filed: January 22, 2026
FAC Filed: February 20, 2026

TO THE CLERK OF THE COURT, ALL PARTIES, AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that, pursuant to Rule 41(a)(1)(A)(i) of the Federal Rules of Civil Procedure, Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in propria persona, hereby voluntarily dismisses the above-captioned action in its entirety, without prejudice, as to all Defendants, including Defendants HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, and JEFF MACOMBER, Secretary of the California Department of Corrections and Rehabilitation, in his official capacity.

Plaintiff is entitled to dismiss this action as a matter of right because no Defendant has

served either an answer to the Complaint or the First Amended Complaint, or a motion for summary judgment. (Fed. R. Civ. P. 41(a)(1)(A)(i).) The only paper served by any Defendant in this action is the Notice of Related Cases filed on May 20, 2026 by Defendant HOPE PSYCHOTHERAPY, INC. (ECF No. 5), which is neither an answer nor a motion for summary judgment within the meaning of Rule 41(a)(1)(A)(i). (See *Hamilton v. Shearson-Lehman American Express, Inc.*, 813 F.2d 1532, 1534-35 (9th Cir. 1987) [right to dismiss under Rule 41(a)(1) is absolute until the defendant serves an answer or motion for summary judgment].)

Because this is the first voluntary dismissal by Plaintiff of any action based on or including the claims asserted in this action, the dismissal is **without prejudice** and does not operate as an adjudication on the merits. (Fed. R. Civ. P. 41(a)(1)(B).)

No court order is required to effect this dismissal. (See *Commercial Space Mgmt. Co. v. Boeing Co.*, 193 F.3d 1074, 1077-78 (9th Cir. 1999) [Rule 41(a)(1) notice of dismissal is self-executing and terminates the action automatically upon filing; the district court has no role to play once the notice is filed].) The Clerk of the Court is respectfully requested to close the file.

Each party shall bear its own costs and attorneys' fees, if any.

Dated: May 21, 2026

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

CERTIFICATE OF SERVICE

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the United States of America that on May 21, 2026, I caused a true and correct copy of the foregoing *NOTICE OF VOLUNTARY DISMISSAL WITHOUT PREJUDICE* to be served upon the following by United States first-class mail, postage prepaid, and additionally filed the same with the Clerk of the Court, which will provide electronic notice to all counsel of record registered through CM/ECF:

Counsel for Defendant HOPE PSYCHOTHERAPY, INC.:

Cynthia G. Lawrence, Esq. (SBN 148927)

Blaze Van Dine, Esq. (SBN 251946)

SIMS, LAWRENCE & BROGHAMMER

1478 Stone Point Drive, Suite 450

Roseville, CA 95661

Email: cynthia@sims-law.net; blaze@sims-law.net; SLB@sims-law.net

Defendant JEFF MACOMBER, Secretary of the California Department of Corrections and Rehabilitation (in his official capacity):

c/o Office of the Attorney General of California

1300 I Street, Suite 125, P.O. Box 944255

Sacramento, CA 94244-2550

Executed on May 21, 2026, at Stockton, California.

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per